

HOUSE BILL No. 1304

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-13-2-53; IC 9-17; IC 34-30-2.1-90.3; IC 35-52-9.1-2.6.

Synopsis: Titles for vintage vehicles. Establishes a procedure for applying for bonded certificates of title for vintage motor vehicles. Requires the bureau of motor vehicles to amend the Indiana Administrative Code to make a conforming amendment. Provides that a person who knowingly or intentionally provides false information to receive a bonded certificate of title commits fraud involving a bonded certificate of title, a Level 6 felony.

Effective: July 1, 2026.

Sweet

January 6, 2026, read first time and referred to Committee on Roads and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1304

A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 9-13-2-53 IS AMENDED TO READ AS
- 2 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 53. "Fair market value",
- 3 for purposes of **IC 9-17-9 and** IC 9-22-3, has the meaning set forth in
- 4 IC 9-22-3-2.
- 5 SECTION 2. IC 9-17-1-1, AS AMENDED BY P.L.164-2020,
- 6 SECTION 36, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 7 JULY 1, 2026]: Sec. 1. (a) This article does not apply to the following:
- 8 (1) A vehicle that is not required to be registered under IC 9-18-2
- 9 (before its expiration) or IC 9-18.1.
- 10 (2) Special machinery.
- 11 (3) A motor vehicle that was designed to have a maximum design
- 12 speed of not more than twenty-five (25) miles per hour and that
- 13 was built, constructed, modified, or assembled by a person other
- 14 than the manufacturer.
- 15 (4) Motor driven cycles.
- 16 (5) An off-road vehicle that was purchased or otherwise acquired
- 17 before January 1, 2010.



(6) Snowmobiles.

(7) A watercraft that is not required to be registered under IC 9-31-3 (before its repeal) or IC 9-18.1-14.5.

(b) Notwithstanding subsection (a), a person may apply for:

(1) a certificate of title under IC 9-17-2-2; ~~or~~

(2) a bonded certificate of title under IC 9-17-9; or

~~(2) (3)~~ **(3) a special identification number under IC 9-17-4;**

for a vehicle listed in subsection (a).

(c) If the bureau issues a certificate of title under subsection (b)(1), the vehicle remains subject to this article until the titleholder surrenders the title to the bureau.

SECTION 3. IC 9-17-9 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 9. Bonded Certificates of Title

Sec. 1. As used in this chapter, "fair market value" has the meaning set forth in IC 9-22-3-2.

Sec. 2. As used in this chapter, "vintage motor vehicle" means a motor vehicle that:

(1) is at least twenty-five (25) years old;

(2) has a fair market value of not more than twenty thousand dollars (\$20,000); and

(3) does not have a current certificate of title.

Sec. 3. A person may apply for a bonded certificate of title for a vintage motor vehicle if the vehicle is not:

(1) a salvage vehicle; or

(2) encumbered by any liens or mortgages.

Sec. 4. A person applying for a bonded certificate of title for a vintage motor vehicle must:

(1) purchase a title bond for:

(A) one and one-half (1 1/2) times the fair market value of the vehicle, if the vehicle has a vehicle identification number; or

(B) two (2) times the fair market value of the vehicle, if the vehicle has a special identification number; and

(2) submit an application in the form and manner prescribed by the bureau and provide the following information:

(A) A full description of the vehicle, including the make, model, and year of manufacture of the vehicle.

(B) The vehicle identification number or special identification number of the vehicle.

(C) The purchase or acquisition date.



(D) A valid bill of sale or an affidavit of ownership. If an affidavit of ownership is provided, it must be on the bureau's designated form.

(E) The name and Social Security number or federal identification number of the person.

(F) Proof of notice required under section 8 of this chapter, if applicable.

(G) Any other information that the bureau requires.

Sec. 5. (a) The application described in section 4 of this chapter must include the following printed statement:

"I swear or affirm that the information I have entered on this form is correct. I understand that making a false statement on this form may constitute the crime of perjury."

(b) The person applying for the bonded certificate of title must sign the form directly below the printed statement.

Sec. 6. (a) An application for a bonded certificate of title for a vintage motor vehicle must contain the odometer reading of the vintage motor vehicle in miles or kilometers as of the date of sale or transfer of the vintage motor vehicle to the applicant.

(b) A person shall not knowingly furnish to the bureau odometer information that does not accurately indicate the total recorded miles or kilometers on the vintage motor vehicle.

(c) The bureau and its license branches are not subject to a criminal or civil action by a person for an invalid odometer reading on a bonded certificate of title.

Sec. 7. (a) Subject to subsection (c), an application for a bonded certificate of title for a vintage motor vehicle may not be accepted by the bureau unless the vintage motor vehicle has been inspected by one (1) of the following:

(1) An employee of a dealer licensed under IC 9-32.

(2) A military police officer assigned to a military post in Indiana.

(3) A police officer.

(4) A designated employee of the bureau.

(5) An employee of a qualified person operating under a contract with the commission.

(6) An employee of a dealer that is:

(A) licensed as a motor vehicle dealer in a state other than Indiana; and

(B) approved by the bureau.

(b) A person described in subsection (a) inspecting a vintage motor vehicle shall do the following:



(1) Make a record of inspection upon the application form prepared by the bureau.

(2) Verify the facts set out in the application.

(c) The bureau may accept an inspection performed by a police officer from a jurisdiction outside Indiana if the bureau determines that an inspection performed by an individual described in subsection (a) is unavailable or otherwise insufficient to complete an application for a bonded certificate of title.

(d) A police officer who makes an inspection under this section may charge a fee, subject to the following:

(1) The fee must be established by an ordinance adopted by the unit (as defined in IC 36-1-2-23) that employs the police officer.

(2) The fee may not exceed five dollars (\$5).

(3) The revenue from the fee shall be deposited in the following manner:

(A) In a special vehicle inspection fund if the police officer making the inspection is a member of the county sheriff's department. The fiscal body of the unit must appropriate the money from the inspection fund only for law enforcement purposes.

(B) In a local law enforcement continuing education fund established by IC 5-2-8-2 if the police officer making the inspection is a member of a city or town police department, a town marshal, a town marshal deputy, a conservancy district marshal, or a deputy conservancy district marshal.

Sec. 8. (a) Before issuing a bonded certificate of title, the bureau shall conduct a search of the National Motor Vehicle Title Information System or an equivalent and commonly available data base to attempt to obtain the last state of record of the vintage motor vehicle in order to attempt to ascertain the name and address of the person who owns or holds a lien on the vintage motor vehicle.

(b) If the bureau obtains the name and address of the owner or lienholder on the vintage motor vehicle, the applicant shall, not later than three (3) business days after obtaining the name and address, notify the owner of and any lienholder on the vintage motor vehicle, as indicated by the certificate of title or discovered by a search under subsection (a), of the following:

(1) The name, address, and telephone number of the applicant.

(2) That the owner or lienholder has thirty (30) days after



receiving the notice to respond.

(3) That the applicant will be permitted to apply for a bonded certificate of title if the owner or lienholder does not respond within thirty (30) days.

The notice must be made by certified mail.

Sec. 9. (a) The bureau may:

(1) make investigations or require additional information; and

(2) reject an application or request;

if the bureau is not satisfied of the genuineness, regularity, or legality of an application or the truth of a statement in an application, or for any other reason.

(b) If the bureau is satisfied that the person applying for a bonded certificate of title for a vintage motor vehicle:

(1) is the owner of the vintage motor vehicle; and

(2) has purchased a title bond in the amount described in section 4 of this chapter;

the bureau shall issue a bonded certificate of title for the vintage motor vehicle after the person pays the applicable fee under subsection (c).

(c) The fee for a bonded certificate of title for a vintage motor vehicle is fifteen dollars (\$15). The fee shall be distributed as follows:

(1) Fifty cents (\$0.50) to the state motor vehicle technology fund.

(2) To the motor vehicle highway account as follows:

(A) For a title issued before January 1, 2027, one dollar (\$1).

(B) For a title issued after December 31, 2026, three dollars and twenty-five cents (\$3.25).

(3) For a title issued before January 1, 2027, three dollars (\$3) to the highway, road and street fund.

(4) Five dollars (\$5) to the crossroads 2000 fund.

(5) One dollar and twenty-five cents (\$1.25) to the integrated public safety communications fund.

(6) To the commission fund as follows:

(A) For a title issued before January 1, 2027, four dollars and twenty-five cents (\$4.25).

(B) For a title issued after December 31, 2026, five dollars (\$5).

(d) The bureau shall deliver a bonded certificate of title to the person that owns the vintage motor vehicle for which the bonded certificate of title was issued.



1 **Sec. 10. (a) A bonded certificate of title is valid for:**

2 **(1) three (3) years for a vintage motor vehicle that has a**
 3 **vehicle identification number; or**

4 **(2) five (5) years for a vintage motor vehicle that has a special**
 5 **identification number.**

6 **(b) If there are no claims made against the bonded title within**
 7 **the time frames described in subsection (a), the bonded certificate**
 8 **of title becomes a certificate of title under IC 9-17-2.**

9 **Sec. 11. (a) A person who knowingly or intentionally provides**
 10 **false information to receive a bonded certificate of title commits**
 11 **fraud involving a bonded certificate of title, a Level 6 felony.**

12 **(b) In addition to the penalties described in IC 35-50-2-7(b), a**
 13 **person who is convicted of a Level 6 felony under this section shall**
 14 **have the person's bonded certificate of title invalidated.**

15 **Sec. 12. The bureau shall allow the:**

16 **(1) application for; and**

17 **(2) processing of:**

18 **bonded certificates of title to occur at license branches.**

19 SECTION 4. IC 34-30-2.1-90.3 IS ADDED TO THE INDIANA
 20 CODE AS A NEW SECTION TO READ AS FOLLOWS
 21 [EFFECTIVE JULY 1, 2026]: **Sec. 90.3. IC 9-17-9-6 (Concerning the**
 22 **bureau of motor vehicles and license branches for invalid odometer**
 23 **readings on bonded certificates of title).**

24 SECTION 5. IC 35-52-9.1-2.6 IS ADDED TO THE INDIANA
 25 CODE AS A NEW SECTION TO READ AS FOLLOWS
 26 [EFFECTIVE JULY 1, 2026]: **Sec. 2.6. IC 9-17-9-11 defines a crime**
 27 **concerning bonded certificates of title.**

28 SECTION 6. [EFFECTIVE JULY 1, 2026] **(a) Not later than June**
 29 **30, 2027, the bureau of motor vehicles shall amend 140 IAC 6-1-2**
 30 **to increase the vehicle value from five thousand dollars (\$5,000) to**
 31 **twenty thousand dollars (\$20,000).**

32 **(b) This SECTION expires July 1, 2027.**

